IN THE COURT OF THE HON'BLE THIRD ADDITIONAL DISTRICT JUDGE OF COIMBATORE

E.A.NO. OF 2023

E.P.NO. 116 OF 2022

K.Venkatapathy -- Petitioner/Proposed party

-Vs-

1. Deepak Balaji -- Respondent no.1/D.Hr.

2.R.Karpagam

3.Nandhini

4.Naren @ R.Narayanasamy -- Respondents/Respondents 2 to 4 /JDs

AFFIDAVIT

I, B.Kavitha W/o.late G.K.Swaminathan, aged about 37 years, residing at Site No.11, K.N.G.Nagar, Arumuga Goundanur, Perur-Chettipalayam,Coimbatore do hereby solemnly affirm and sincerely state as follows:-

1. I am the petitioner herein and also the petitioner's counsel.

2. I submit that the 1st respondent/Decree holder herein filed the main E.P. against Respondent 2 to 4 for recovery of a sum of Rs.28,03,422/- along with future claim and cost as per award passed in AOP No.6/2012 dated 23.05.2013.

3 I submit that the above petition was returned on 21.11.2023 for complying the returns and to represent the same by giving a period of 15 days.

4. I submit that, I was under impression that the petition got numbered but on verifying its status as the case hearing is posted on 29.01.2024, I came to know that the petition got returned on 21.11.2023 itself and thereafter the returned petition was taken from court on 22.01.2024. As such, there is a delay of 54 days in representing the petition in time and thus the delay of 54 days in representing the petition may kindly be condoned. I am not wantonly negligent in representing the petition in time but for the reasons aforesaid.

Therefore, it is prayed that this Honourable Court may be pleased to condone delay of 54 days in representing the petition and render justice.

Solemnly affirm and signed
Before me at Coimbatore on

PETITIONER

ADVOCATE, COIMBATORE.

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PETITION FILED FOR CONDONING THE DELAY IN REPRESENTATION UNDER SECTION 151 OF C.P.C

I. PETITIONER/PROPOSED PARTY:

I K.Venkatapathy S/o late Krishnaswamy Naidu, aged 73 years, residing at 219, Race course, Tea estate compound, Coimbatore.

The address for service of the Petitioner/Proposed Party is same as above and care of his Counsel Mrs.B.Kavitha, B.B.A. LL.B., Advocate, Coimbatore 641 010.

II.RESPONDENT NO.1/D.Hr.

1. Mr.Deepak Balaji, S/o.Sivanandam, aged 35 years, residing at Building No.212, Coimbatore Main Road, Metupalayam – 641 301.

The address for service for Respondent no.1/D.Hr. is the same as above.

III. RESPONDENTS/ RESPONDENTS 2 TO 4/JDs: -

2. Mrs.R.Karpagam, W/o.Late K.Ramdas, Care of Late Srivasalu Naidu, aged 75 years, residing at V.Velur, Jakkarpalayam via, Udumalpet Taluk, Tirupur.

3. Mrs.Nandhini, W/o. Mr.Venkatesh, aged 45 years, residing at V.Velur, Jakkarpalayam via, Udumalpet Taluk, Tirupur.

4. Mr.Naren @R.Narayanasamy, S/o.Late K.Ramdass, aged 42 years, residing at V.Velur, Jakkarpalayam via, Udumalpet Taluk, Tirupur.

The address for service for Respondents/Respondents 2 To 4/JDs are the same as above.

For the reasons stated in the accompanying affidavit the petitioner prays that this Hon'ble court may be pleased to condone the delay of 54 days in representing the aforesaid suit and pass such other further orders which this Honourable Court deems fit and proper according to the circumstances of the case and render justice.

ADVOCATE FOR PETITONER

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-- Respondents/ Respondents 2 to 4/JDs

PETITION FILED FOR CONDONING THE DELAY IN REPRESENTATION UNDER SECTION 151 OF C.P.C

PRE ON:

ADDRESS FOR SERVICE: